KUDAKWASHE BHEJANA
versus
CARLEN NYARUMBU
and
KELVIN NYARUMBU
and
DAPHINE RUPANDE
and
ZAFANA DHLIWAYO
and
TEMBA NYARUMBU
and
SUSAN NYARUMBU
and
FRANK VUTSA NYARUMBU

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 13 & 28 July 2026

EXCEPTION

Plaintiff in person
D. Mutungura, for the defendant

SIZIBA J**:**

1. On 6 May 2026, the plaintiff filed a civil action against the defendant seeking multifaceted relief. In terms of the summons, the plaintiff's prayer is couched as follows:

   "*1. Payment of USD 250,000.00 being damages arising from fraud, unjust enrichment, and related causes of action, as more fully set out in the annexed Declaration.*
   2. Declaratory, custody, and ancillary relief as set out in the annexed Declaration.
   3. Costs of suit on a punitive scale.
   4. Further and/or alternative relief."

2. The first part of plaintiff's prayer in the Declaration is as follows:

   "*A. Monetary Relief*
   Payment of damages in the sum of USD 250,000.00 (Two Hundred and Fifty Thousand United States Dollars), comprising the following identified components:

(i) Restitution of pre-United Kingdom relocation financial support, accommodation, and upkeep expenses in the amount of USD 12,000.00;
(ii) Restitution of United Kingdom relocation costs, comprising the airline ticket purchased by the Plaintiff in January 2022 at a cost of USD 1,200.00, together with initial settlement and relocation funds of USD 5,000.00;
(iii) Restitution of the airline ticket purchased by the Plaintiff for Carlen Nyarumbu's visit to the United States in January 2023 at a cost of USD 1,200.00;
(iv) Restitution of the airline ticket purchased by the Plaintiff for Carlen Nyarumbu's travel from the United Kingdom to Zimbabwe in January 2024 at a cost of USD 1,200.00;
(v) Restitution of the value of joint marital savings unilaterally diverted by Carlen Nyarumbu toward the purchase of the Paradise Park residential stand in the amount of USD 10,000.00;
(vi) An order directing the sale of the Paradise Park residential stand and the payment to the Plaintiff of his proportionate share of the proceeds thereof;
(vii) Lobola restitution calculated at fifty percent of the current value of the lobola herd and its natural progeny, being an amount of not less than USD 33,000.00;
(viii) Child support in the sum of USD 500.00 per month for the maintenance of the minor child, to be transmitted through appropriate authorities in the United Kingdom;
(ix) Compensation for dignity harm, emotional distress, reputational injury, and all further patrimonial and non-patrimonial loss in such further amount as this Honourable Court deems just;
(x) Aggravated damages having regard to the sustained, multi-jurisdictional, and deliberate nature of the Defendants' conduct."

3. The second part of the prayer in the Declaration is as follows:

"*B. Declaratory Relief*
(i) A declaration that the Defendants' conduct constituted fraudulent misrepresentation, unjust enrichment, unlawful interference with marital relations, abuse of customary structures, and a violation of the Plaintiff's dignity and parental rights;

(ii) A declaration that the marriage between the Plaintiff and Carlen Nyarumbu has been constructively repudiated by the Defendants through their sustained course of bad faith conduct;
iii) A declaration that the Plaintiff is the biological and lawful father of the minor child Kudana Ventana Bhejana, born on 3 November 2023;
(iv) An order directing the competent authority in Zimbabwe to issue a birth certificate recording the Plaintiff as the father of the minor child, pursuant to the Births and Deaths Registration Act [Chapter 5:02];
(v) A declaration that the customary marriage between the Plaintiff and Carlen Nyarumbu has not been lawfully dissolved, that the purported gupuro transmitted via WhatsApp in November 2025 is null and void on all grounds, and that any union entered into by Carlen Nyarumbu with another person during the subsistence of the existing customary marriage is void as against the Plaintiff's rights;
(vi) A declaration that Zafania Dhliwayo acted in breach of his mandate as munyai by signing the purported gupuro document without the Plaintiff's knowledge or consent and without convening the required customary process, and that his purported ratification of the dissolution is of no force or effect;

(vii) An order directing Carlen Nyarumbu to remove forthwith all defamatory, false, or humiliating material published about the Plaintiff on WhatsApp or any other social media platform, and restraining her from publishing further such material."

4. The third part of the relief sought by the plaintiff in the Declaration is as follows:

"*C. Custody, Guardianship, and Access Orders*

(i) An order granting the Plaintiff full physical and legal custody and guardianship of the minor child, with the child's primary residence confirmed at the Plaintiff's family home in Mutare, Zimbabwe;

(ii) An order declaring that the minor child's primary physical residence is at the Plaintiff's family home and that such residence shall not be altered without the leave of this Honourable Court;

(iii) An order strictly prohibiting Kelvin Nyarumbu and Daphne Rupande from entering or approaching the Plaintiff's family home without prior written notice and the express consent of the Plaintiff or his designated representative;

(iv) An order limiting the access of Kelvin Nyarumbu and Daphne Rupande to the minor child to a maximum of three supervised visits per calendar year, each of no more than one hour in duration, to take place at the Plaintiff's family home and without removal of the child from those premises, subject to written notice to the Plaintiff no less than seven days in advance;

(v) An order that Carlen Nyarumbu shall have limited access to the minor child, restricted to periods not exceeding two weeks per calendar year, such access to occur at the child's primary residence and without removal of the child from that residence, subject to prior discussion with and agreement from the Plaintiff;

(vi) An order for the appointment of a curator ad litem to represent the independent interests of the minor child in all proceedings before this Honourable Court;

(vii) An order prohibiting Carlen Nyarumbu from removing the minor child Kudana Ventana Bhejana from Zimbabwe without the prior written consent of the Plaintiff or a further order of this Honourable Court;

(viii) An order directing the relevant Zimbabwe immigration and border control authorities to prevent the departure of the minor child from Zimbabwe in the absence of written confirmation of the Plaintiff's consent or a court order permitting such departure;

(ix) An order directing Carlen Nyarumbu to surrender to the Registrar of this Honourable all travel documents held in the name of the minor child pending the final of custody;

(x) An order directing the Registrar-General of Zimbabwe to amend the Zimbabwean birth certificate of the minor child to reflect his correct surname as Bhejana, to record the Plaintiff as his father, and to reissue all official documentation accordingly;

(xi) An order restraining Carlen Nyarumbu from publishing or disseminating any defamatory, abusive, or harassing statements concerning the Plaintiff on any social media or public platform;

(xii) An order directing that Carlen Nyarumbu shall communicate with the Plaintiff's family only through a neutral third party designated by this Honourable Court."

5. The fourth part of the relief sought in the Declaration is as follows:

"*D. Ancillary Relief*

(i) An order authorising the attachment and sale of the Defendants' movable and immovable property, including vehicles, land, and other assets, for the purpose of satisfying the judgment debt;
(ii) An order authorising the garnishment of bank accounts and any other financial instruments held by the Defendants;
(iii) An order directing the relevant authorities in the United Kingdom to effect garnishment of Carlen Nyarumbu's wages for the purpose of satisfying both the damages award and the lobola restitution obligations;
(iv) Costs of suit against all Defendants on a punitive scale, having regard to the Defendants' bad faith conduct throughout;
(v) Such further and alternative relief as this Honourable Court deems just and equitable in the circumstances."

6. The defendants excepted to the plaintiff's claims and alleged that there is no cause of action. In the alternative, they alleged that the Declaration does not state truly and concisely the nature, extent and grounds of the cause of action nor precisely the relief claimed in violation of r 13(1) and (2) of the High Court Rules, 2021 in that it is meandering, self-contradictory and afflicted with indecipherable lack of cohesion, stream conscience and logic. They further alleged that as a consequence, the Summons and Declaration are both vague and embarrassing or lack averments necessary to sustain the specific causes of action to the extent that the defendants cannot properly plead to them even if amended. The defendants accordingly prayed that the exception be upheld and that the plaintiff's claims be dismissed with costs on a legal practitioner and client scale.

7. The defendants based their complaint on eight grounds. The first ground was that the plaintiff was seeking a return of the lobola whilst insisting that his marriage to the first respondent was still undissolved. The second ground was that the plaintiff said that he paid cash for lobola but he was basing his refund of lobola on the current value of cattle. The third ground was that the essential elements of unjust enrichment had not been pleaded and that the quantum of damages was not supported by pleaded facts. The fourth ground of complaint was that he alleged that the sum of US$10 000 was from first defendant's savings and yet he claimed a share to it. The fifth ground was that he claimed a restitution of the US$10 000 as a whole while at the same time claiming a share thereof. The sixth ground was that the claims for harm to dignity, emotional distress, reputational injury, patrimonial and non patrimonial loss were unquantified.

The seventh ground was that the damages for aggravated damages were also unquantified and not pleaded. The eighth ground was that there was no cause of action for the declaratory orders.

8. Before this exception was heard by the court, the parties wrote several letters to the Registrar of this court. The plaintiff insisted that the defendants' exception was not properly before the court because the defendants had not entered appearance to defend. The plaintiff's position was that the defendants were therefore automatically barred and therefore disabled from filing any further process before this court. He had attempted to obtain a default judgment against the defendants. The plaintiff's argument was that the notice of appearance to defend had not been served upon him as mandated by the rules of this Court. He went further to say that the notice of appearance to defend that was filed by the defendants' legal practitioners only stated that they were acting for the first defendant only and hence the rest of the defendants were barred. The plaintiff also attacked the notice of appearance to defend for the reason that it contained an address of service that was in Harare way beyond the 15 kilometre radius which is prescribed by the rules of this court. He also took the view that the form for the notice of appearance and defend was different from the one prescribed by the rules of this court. The defendants refuted all these allegations in their correspondences which were addressed to the Registrar of this court.

SUBMISSIONS BY THE PARTIES

9. Counsel for the defendants submitted that the notice of appearance to defend clearly stated in its contents that appearance of defend was being entered on behalf of all the defendants. The reference to their law firm as first defendant's legal practitioners in the address of service was a typing error which they had clarified to the plaintiff. She proceeded further to argue that service of the notice of appearance to defend was deemed upon mere filing of such process on the IECMS portal in terms of r 15(4) of the High Court Rules, 2021 as amended by Statutory Instrument 81 of 2024. On the merits of the exception, counsel abided by her papers filed of record. She emphasized that the plaintiff's claim was contradictory. The plaintiff was claiming a refund of

lobola while he was seeking a declaratory order upholding the validity of the marriage. He was also claiming child support from all the defendants without a legal basis. She prayed for the dismissal of the plaintiff's claim.

10. On the other hand, the plaintiff also abided by his papers filed of record. He emphasized that the second to the seventh defendants had not been represented by the first defendant's legal practitioners when the notice of appearance to defend was filed. These defendants had no IECMS accounts of their own. He insisted that each of the defendants ought to have filed separate notices of appearance to defend in terms of the rules of this court even if they were represented by one lawyer. He argued that the notice of appearance to defend clearly stated that it was on behalf of the first defendant. The said notice of appearance of defend had a different case number HCMTC176/26 instead of HCMTF176/26. The address of service was in Harare outside the 20km radius as prescribed in the rules. There was also an automatic bar against the defendants for failure to properly file a notice of appearance to defend as required by the rules of this court. He further stated that the exception was filed after the expiry of the 10-day time frame provided in r 37(3) of the High Court Rules, 2021. The exception was irregular also as it was filed after the defendants had been served with a notice of intention to bar which called upon them to file their plea and not any other process. On the merits, the plaintiff submitted that his declaration was very clear. The claim related to a son in law suing his in laws and his spouse and the redress for the identity of his son. He submitted that all the defendants are liable for the monetary relief because they received his lobola payment. The sum of money which pertained to the minor child was confined to the first defendant. He submitted that there was no contradiction. The divorce token that he had been given was invalid. He said that the defendants had annulled the marriage. He said that there is a sequence in his pleading. The monetary claim was a total of US$250 000. The plaintiff submitted that because of this flagrant violation of the rules of this court, defendants' exception should be struck off the roll with no order as to costs.

11. Replying to the issues of law, defendants' counsel submitted that the exception had not been filed late because the rules required a notice of 12 days to be given to the other party after one has entered appearance to defend. Counsel therefore submitted that the exception was filed in time. She further submitted that the address of service could be the alternative email address for their law firm in Mutare. She submitted that there was no requirement for legal practitioners to file separate notices of appearance to defend for each defendant when they represent all of them.

12. From the above contestations, two issues therefore emerge for determination by this court. The first one is whether the defendants' exception is properly before this court. The second issue is whether the defendants' exception has merit or not.

WHETHER THE DEFENDANTS' EXCEPTION IS PROPERLY BEFORE THE COURT

13. The defendants' exception would be properly before this court if they properly entered appearance to defend and if the exception was filed on time. Rule 15(4) of the High Court Rules, 2021 as amended by Statutory Instrument 81 of 2024 provides thus:

> *"Save for the initial service of a summons commencing action, the services of notices of set down on the unopposed roll of matrimonial applications, the service of any process for the arrest of any person, the service of writs and warrants, the service of any document, pleading or process shall be effected on the IECMS platform:*
> *Provided that any litigant or representative shall be entitled to access an e-filing centre nearest to him or her, and at no cost, to effect electronic service and further that a judge may on application authorize service by any other means on good cause shown"*

14. The above provision is clear in its literal meaning that save for the exceptions indicated thereon, the rest of the pleadings are served by mere filing on the IECMS platform. This is the interpretation that was adopted in the cases of *Cepward Investments (Pvt) Ltd* v *Nyikavanhu Housing Co-operative and Others* HH 899/25, *Aziz Tariq and Falcon Foods (Pvt) Ltd* v *Mozaza Logistics (Pvt) Ltd* HH 248/25 and *Convergence Resources (Pvt) Ltd* v *Forthfield Investments (Pvt) Ltd* HH 47/26. Having concluded thus, it follows therefore that the defendants properly served the plaintiff with their

notice of appearance to defend by filing such pleading in the IECMS platform which automatically reports to his email.

15. A perusal of the contents of the notice of appearance to defend that was filed by defendants' counsel expressly provides that appearance to defend was being entered for all the defendants. The reference to only the first defendant in the address for service by the legal practitioners was clearly a typing error as highlighted by defendants' counsel. Nowhere in the rules of this court is it stated that when a legal practitioner is defending more than one defendant, separate notices of appearance to defend for each defendant must be filed. The electronic address of service being an email in Mutare by defendants' legal practitioners answers the plaintiff's contention about a Harare address of service since the rules now define an address of service to include an electronic one apart from the physical address. See r 2 of the High Court Rules, 2021 as amended by Statutory Instrument 81 of 2024. The wrong case number of HCMTC176/26 instead of HCMTF176/26 is clearly a typing error that should not detain this court. Furthermore, I am persuaded by defendants' counsel that the 10 day time frame for filing an exception by a defendant in terms of r 37(3) should be interpreted with due regard to r 42(3) which mandates that the plaintiff should be given a 12 day notice prior to any exception being filed. In light of these findings, I therefore come to the conclusion that the defendants' exception is properly before the court.

WHETHER THE DEFENDANTS' EXCEPTION HAS MERIT

16. The defendants' attack to the plaintiff's claim as set out in the Summons and Declaration is twofold. The main objection is that there is no cause of action. The alternative objection is that the Declaration fails to truly and concisely state the nature, extent and grounds of the cause of action in violation of r 13(1)(e) of the rules of this court. There is a further complaint that the claim is vague and embarrassing to the extent that the defendants cannot properly plead to the claim.

17. A perusal of the plaintiff's papers does not totally support the contention that he has no cause of action. Most of the claims that the plaintiff has put forth may be actionable at

law. These include the refund for the lobola, claims for impairment of dignity, the correction of the Birth Records to include his name as the father of the child, the claims for custody of the child, claims for defamation, reputational injury. The problem that afflicts the plaintiff's claims is that the claims are not clearly set out in his Summons and Declaration. There is no coherency, no clarity, there is contradiction which makes the plaintiff's claims difficult for any party to respond to. There is therefore merit in the alternative ground of exception by the defendants that the plaintiff has failed to state truly and concisely the nature, extent and grounds of the cause of action. The claims are vague and embarrassing.

18. In *Chimakure and Another* v *Mutambara and Another* SC 91/20 at p 12, the test for vague and embarrassing pleadings was articulated as follows:

> "*Whenever a pleading is vague or lacking in precision it is susceptible to an exception only if the alleged vagueness renders the whole pleading unintelligible. A defendant is, as a consequence, under a burden to establish that the pleading has embarrassed him or her in pleading thereto. In Pete's Warehousing and Sales CC v Bowsink Investments CC 2000 (3) SA 833 at 834H, the following is stated:*
>
> > *'The test to be applied in determining an exception is as follows: The excipient has the duty to persuade the court that upon every interpretation which the pleading in question, and in particular any document on which it is based, could bear no cause of action or defence, failing this, the exception had to be dismissed."*"

19. The vagueness and embarrassment which justifies an exception to the summons and declaration must relate to the cause of action and it may involve contradictory allegations which are not pleaded in the alternative. See *Chimakure and Another* v *Mutambara and Another* (*supra*).

20. The plaintiff's claims are not clearly set out to establish clear causes of action against the defendants. The claims for the lobola refund and financial upkeep of the first defendant are contradicted by the averments that plaintiff's marriage with her is still subsisting. The averment that the marriage still subsists also contradicts the plaintiff's claims for unjust enrichment and financial manipulation by the defendants. The

defendants are alleged to have caused a wreckage of his marriage to the first defendant and yet he says that the marriage is still in existence. This is illogical and unintelligible.

21. The claim for refund of lobola is based on the current value of lobola cattle and their progeny and yet he paid lobola in form of cash. The claims for custody of the child by the plaintiff on behalf of his parents whilst he is residing in the United States of America is also confusing. There are no monetary figures attached to some of the claims for damages such as compensation for dignity harm, emotional distress, reputational injury, patrimonial and non-patrimonial loss, aggravated damages, fraudulent misrepresentation, civil conspiracy, financial manipulation and some of those alleged damages have not been justified and some of them like aggravated damages do not make any sense at all.

22. Furthermore, the US$10 000 that the first defendant allegedly used to purchase the Paradise Park stand in Mutare is said to have emanated from her own savings. No clear factual or legal basis is advanced why that property should then be sold and the proceeds shared. No legal basis for sharing of the property has been alleged since the plaintiff says that his customary marriage to the first respondent still subsists. At the same time. There is also no clear basis why the plaintiff is claiming maintenance from the first defendant in respect of the minor child who is not with him. There is also no clear basis for restricting access to the minor child by the defendants who are his relatives when the marriage still subsists.

23. The plaintiff's Declaration consists of 297 paragraphs and it is about 50 pages long. There is no logical sequence in his averments. It is just a rant. The causes of action are not clearly set out. There is contradiction. There is lack of coherency and logic in the plaintiff's pleading. There is verbosity and tautology that renders the Summons and Declaration vague and embarrassing. The defendants will be prejudiced in pleading to the plaintiff's Summons and Declaration. No amount of amendment can cure the confusing nature of the plaintiff's claim. The defendants have prayed that the claim be dismissed with punitive costs. As I have indicated, some of the plaintiff's claims may

be entertained by the court if framed properly and in compliance with this court's rules. The proper order will be to uphold the exception in the alternative and strike the matter off the roll. The prayer for punitive costs is justified because the plaintiff was notified of the defects in his papers but persisted and disagreed up to the end. I therefore order as follows:

(a) The defendants' exception that the plaintiff's declaration does not state truly and concisely the nature, extent and grounds of the cause of action and that it is vague and embarrassing is upheld.

(b) The matter is hereby struck of the roll with costs at attorney client scale.

Maunga Maanda and Associates, defendant's legal practitioners